

SLOW AND UNSTEADY

Hundreds of judicial inquiries have been set up by various governments, but most of them are political black holes involving public money. Prominent ones:

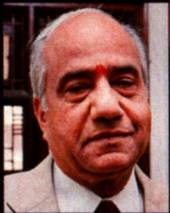


Thakkar Commission

Set up to inquire into the assassination of former prime minister Indira Gandhi, pointed the finger of suspicion at R.K. Dhawan, a close aide of Mrs Gandhi. Rajiv Gandhi rehabilitated Dhawan and he is still close to Sonia Gandhi.

Jain Commission

Constituted to probe the conspiracy behind the assassination of former prime minister Rajiv Gandhi. After seven years and an expenditure of Rs 2.81 crore, it came to no specific conclusion. That led to the appointment of yet another commission.



Srikrishna Commission

The Srikrishna Commission's Report on the Mumbai riots after the demolition of the Babri Masjid was rejected by the then Maharashtra chief minister, Manohar Joshi, who accused Justice Srikrishna of being biased against Hindus.

Lahoti Commission

Instituted to inquire into the mid-air collision of passenger aircrafts at Charkhi Dadri which killed 349 people and headed by then-Delhi High Court judge R.C. Lahoti, it submitted its report in July 1997. The Civil Aviation Ministry is still "studying its findings".



Kripal Commission

The Justice B.N. Kripal Commission of inquiry was set-up in July, 1985, to probe the bombing of an Air-India flight that killed all 329 people on board. The commission undertook extensive tours of Canada and the US but nothing was proved and no one was punished.

Phukan Commission

Set-up to probe the Tehelka exposé into fictitious defence deals. Justice S.N. Phukan along with his wife and eight officials used IAF planes to visit various religious places unconnected to the probe and the inquiry lost its credibility.



to him, each government appoints a person to head a judicial probe, who will give a report in its favour. "People should have confidence that the person heading the inquiry has gone through the due judicial process, and not make a farce of it," Khare says.

He is quick to add that not all commissions of inquiry have been a farce. "Look at the Srikrishna Commission Report. He beautifully acquitted himself in the inquiry. It all depends upon the person," Khare adds.

Then how does one deal with controversial cases, where people feel that a police probe could be prejudicial or biased? Verma says that to handle cases like the Batla House encounter, the National Human Rights Commission (NHRC) has laid out certain guidelines. "Why is nobody looking at the guidelines which have been in existence?" The NHRC was meant to do away with judicial inquiries and the guidelines talk of an independent probe into encounters and similar controversial cases. "An inquiry can be conducted by a set of police officers, not related to the incident. Once the inquiry is complete, the report can be given to the NHRC," adds Verma.

Tulsi concurs but only to the point that an inquiry by the police can be faster since they are bound to submit the chargesheet within three months, and also since they have the powers to search, seize and arrest.

Tulsi argues that perhaps India can borrow from the American system where they have an Independent Council Act. "It was enacted after the Watergate Scandal since there was no one to investigate the President. Kenneth Starr inquired into President Bill Clinton's conduct in the Monica Lewinsky case under the Act. It took him just 10 days to hold President Clinton guilty," Tulsi adds.

Sadly, there's little hope of that happening here. Judicial inquiries have become such a convenient fig leaf for politicians that it has almost replaced the Gandhi *topi* as an essential accessory. ■